

District-Chattogram.

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION,
(CIVIL REVISIONAL JURISDICTION)**

Present:

Mr. Justice Md. Toufiq Inam

Civil Revision No. 2281 of 2022.

Sayed Salah Uddin (Advocate).

..... Petitioner.

-Versus-

A.K.M. Ala Uddin Chowdhury and others.

..... 3rd Party-Applicant-Opposite Party Nos.1-7.

The Waqf Administration and others.

..... Opposite Party Nos. 2-5 -- Opposite Parties.

Mr. Sheikh Zulfiquir Bulbul, Advocate with

Mr. Syed Minhajuddin, Advocate

..... For the Petitioner

Mr. Md. Humayun Bashar, Advocate with

Ms. Zubaida Gulshan Ara, Advocate

.... For the 3rd Party-Applicant-Opposite Party Nos.1-7.

Mr. Md. Yousuf Ali, D.A.G. with

Mr. Kazi Rahman (Manik), A.A.G.,

Mr. Md. Siddik Ali, A.A.G.,

Mr. Raja Kamrul Islam, A.A.G., and

Ms. Kamrunnahar Lipi, A.A.G.,

..... Opposite Party Nos. 2-5 -- Opposite Parties.

Heard On: 15.07.2025.

And

Judgment Delivered On: 17.07.2025.

Md. Toufiq Inam, J.

This Rule was issued calling upon the opposite parties to show cause as to why the impugned order No. 92 dated 22.02.2022 passed by the learned Additional District Judge, 3rd Court, Chattogram in Miscellaneous Case No. 179 of 2005, so far as it relates to allow an

application for addition of party filed by the opposite party No. 1-7, should not be set aside and/or to pass such other or further order or orders as to this court seems fit and proper.

The facts reveals for the purpose of disposes the Rule are that the petitioner as plaintiff filed Miscellaneous Case No. 179 of 2005 in the 3rd Court of Additional District Judge, Chattogram to struck down the property described in the schedule of the plaint from the enrolment of E.C. No. 18832 (Chattogram). In Miscellaneous Case the opposite party Nos. 1-7 as third party filed an application for being added as defendant in the Misc. Case. The learned trial court by the impugned order No. 92 dated 22.02.2022 allowed the application and added the opposite party Nos. 1-7 as defendants in the Misc. Case.

Being aggrieved by the order added the opposite party Nos. 1-7 as defendant in the case the plaintiff as petitioner moved this court this revisional jurisdiction and obtained the present Rule.

Mr. Sheikh Zulfiquir Bulbul Chowdhury appearing with Mr. Mohammad Romjan Miah, the learned Advocate submits that the opposite party Nos. 1-7 are not necessary party to the proceeding as the plaintiff petitioner has challenge enrollment of E.C. No. 18832 (Chattogram) as that is private property of the petitioner. Mr. Chowdhury submits that since the waqf administrator most technically

enrolled the private property of the plaintiff petitioner as waqf property and the plaintiff petitioner has questioned the property of that enrollment in the miscellaneous case and the opposite party Nos. 1-7 has nothing to challenge. Next he submits that opposite party No. 1-7 say that they have shares in the case property by inherited. Therefore if the suit is decreed they could have prayed their share in the property and at this stage they are not necessary party for adjudication of the Misc. Case. He further submits that if opposite party Nos.1-7 is aggrieved by the order of the waqf administrator they could have preferred separate and equivalent miscellaneous case as plaintiff and their remedy lies in a separate case and they are not necessary party to the instance proceedings.

On the contrary Mr. Humayun Basher, learned Advocate appearing for the opposite party Nos. 1-7 at the outset submits that the application filed under Order 1 Rule 10(2) and section 151 and 141 of the CPC read with section 35 of the Waqf Ordinance. Since the opposite party Nos.1-7 are the heirs of Sayed Amin Uddin who is one of the three sons of the original owner Sayed Monir Uddin Sha. And the plaintiff petitioner is also the heir of Khan Saheb Syed Siraj Uddin, another son of the original owner of the Sayed Monir Uddin Sha. Therefore the opposite party Nos. 1-7 are on the equal footing like the plaintiff petitioner and therefore they are necessary party to the suit. He further submits that under Order 1 Rule 10(2) the court

may at the instance at any stage of the proceeding can add someone who is necessary party for affective and complete adjudication of the matter. And therefore the trial court rightly allowed the application for addition of party and added the opposite party Nos. 1-7 as defendant in the miscellaneous case.

Having heard the learned Advocate for both the parties and perused the impugned order together with the other materials on records. It appears that the opposite party Nos. 1-7 are the admitted legal heirs of Sayed Amin Uddin who is the full bother of Khan Saheb Sayed Siraj Uddin. And the plaintiff is the grandson of said Khan Saheb Sayed Siraj Uddin. This types are not disputed in a suit the court at any stage of the proceeding can add someone if the court find his just to that his presence is necessary for effectual and complete disposal of the case, therefore in this the impugned judgment and order the trial court rightly added them as party. Therefore this court finds no substance in the Rule.

Accordingly **the Rule is discharged**. No order as to cost.

Communicate the order at once.

(Justice Md. Toufiq Inam)